

Insurance Policy

Liability - Master

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[REDACTED]
[REDACTED]

Print date
21 February 2024

Policy no.
LP0000017479-37

Reg. firm no.

[REDACTED]

DUNS no.

[REDACTED]

Policy period
1 July 2023 - 30 June 2024

Renewal date
1 July 2024

Client no.
LC0021026334

Policyholder: [REDACTED]

INSURED

[REDACTED] including Companies forming [REDACTED] where [REDACTED] directly or indirectly have more than 50% voting rights and/or management control and including [REDACTED] interest in associated companies and joint ventures, as described in clause 1, Master Policy Wording, Appendix 1:6.

INSURED ACTIVITIES

All activities of the Insured as specified in clause 1 in the Master Policy Wording, Appendix 1:6.

BASE OF PREMIUM

Actual turnover 2022: [REDACTED]

PREMIUM

The premium is flat.

In accordance with Appendix 1:6, p.1.2 second section a) and b) - no additional premium will be charged regarding acquisitions within the given frames.

LOSS ADJUSTER

[REDACTED]

LOCAL POLICIES

Local liability policies are issued according to page 10. These local liability policies are an integral part of the Master Programme issued by If P&C, Sweden.

Policy summary

General Liability and Product Liability Insurance

Recall

Professional Indemnity

If P&C Insurance Ltd. (publ)
Address: SE-106 80 Stockholm, Sweden
Office: Barks väg 15, Solna

www.if.se
Telephone: +46 771 43 00 00
E-mail: firstname.lastname@if.se

Registered domicile: Stockholm
No.: 516401-8102
Main office: Barks väg 15, Solna
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Should the payment of the premium be delayed, the liability of If P&C Insurance shall not commence until the day after the payment.

Any objections regarding the contents of the insurance policy shall be made within 14 days.

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General Liability and Product Liability Insurance

Period: 1 July 2023 - 30 June 2024

Trigger: Occurrence

Geographical scope: Worldwide excluding Russia and Belarus

Sum insured	Currency	Per occurrence	Aggregate
TOTAL sum insured, General Liability	USD	50,000,000	
TOTAL sum insured, Products Liability	USD	50,000,000	50,000,000
Indemnity to Principal	USD	50,000,000	50,000,000
Advertising Liability	USD	50,000,000	50,000,000
Property in care, custody and control	USD	50,000,000	50,000,000
Tenants Liability	USD	50,000,000	50,000,000
Sublimit - Pure Financial Loss	USD	10,000,000	10,000,000
Sublimit - Dismantling and Reinstallation	USD	25,000,000	25,000,000
Sublimit - Corporate Manslaughter Act	USD	5,000,000	5,000,000
Sublimit - Data Protection Act	USD	5,000,000	5,000,000
Sublimit - Proprietors Liability	USD	5,000,000	5,000,000
Sublimit - Demonstration Cars	USD	10,000,000	10,000,000
Sublimit - Drones, DR 10:1, Limit: 750 000 SDR per occurrence and in the agg. (approx. 1 MUSD)	USD	1,000,000	1,000,000

Deductible	Currency	Per occurrence
DEDUCTIBLE		
General Liability	USD	50,000
Products Liability	USD	200,000
Pure Financial Loss	USD	50,000
Dismantling and Reinstallation - Extended Products Liability, for products related to windmills	USD	3,000,000
Dismantling and Reinstallation - Extended Products Liability, except products related to windmills	USD	1,000,000
Care, Custody and Control	USD	100,000
Rest of the World		
Care, Custody and Control	USD	200,000
North America		
Demonstration Cars	USD	200,000
	SEK	8,000

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ATTACHMENT POINTS

Employer's Liability, Except for UK, Eire and Channel Islands	USD	1,000,000
Employer's Liability, UK, Eire and Channel Islands	GBP	10,000,000
Employer's Liability, for off-shore	GBP	5,000,000
Auto Liability, World wide excl North America	EUR	500,000
Auto Liability, USA	USD	10,000,000
Auto Liability, Canada	CAD	1,000,000

Insurance terms and conditions

Appendix 1:6	Master Policy Wording
Appendix 2:2	Following Form Local Policy
Appendix 3:1	Care, Custody and Control
Appendix 4:2	Blended Named Perils/Time Element Pollution
Appendix 5:2	Employer's Liability
Appendix 6:5	Use of Motor Vehicle in Traffic
Appendix 8:3	Pure Financial Loss
Appendix 9:4	Dismantling and Reinstallation Costs
Appendix 10:2	Proprietors Liability
Appendix 11:1	Demonstration Cars
Appendix 13:1	Terrorism
Appendix 14:2	Insurance Premium Tax Indemnity
Appendix 15:1	Retroactive Cover - Claims Made
Appendix 16:1	Series losses for Newly acquired Companies
Appendix 17:1	Advertising Liability
Appendix 18:1	Additional Insured
Appendix 19:1	Extended Reporting Period
Appendix 20:1	Claims due to ingredients or components
Appendix 21:1	Overseas Personal Liability
Appendix 22:1	Working Boats
Appendix 23:1	Vendors Endorsement
Appendix 24:1	Rented, leased, borrowed equipment
IS1:2	International Sanctions
CYB 11:3	Cyber event exclusion
PE 11:1	Pharmaceutical Products Exclusion
VIR 11:1	Virus exclusion
FINC 2:2	Financial Interest Value Cover Liability
DR 10:1	Drones

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SUM INSURED

The sublimits mentioned above are included in the total sum insured of USD 50,000,000 per occurrence and in the aggregate for the policy period.

Regarding General Liability, no aggregate applies for the policy period.

PUBLIC AND PRODUCTS LIABILITY INSURANCE - INDEMNITY TO PRINCIPAL

The following clause shall apply for contractual liability assumed by  Indemnity to any principal applies with a limit equivalent to the total sum insured.

INDEMNITY TO PRINCIPAL

Where any contract or agreement entered into by the Insured for the performance of work so requires the Insurer will indemnify the Principal in like manner to the Insured in respect of the Principal's liability arising from the performance of the work by the Insured. The Insurer shall retain sole conduct and control of any claim hereunder.

CORPORATE MANSLAUGHTER ACT

The insurance includes cover for Corporate Manslaughter Act in UK and according to equivalent legislation in other countries up to a sublimit of USD 5,000,000 in total for the Policy Period.

COMPENSATION FOR COURT ATTENDANCE

Fixed rates per day for each day on which attendance is required accruing at, as a minimum the equivalent in any currency of SEK 2500 per day for management and SEK 1500 per day for other employees.

RADIOACTIVE ISOTOPES

With amendment to Appendix 1:6, p.9.8, the exclusion does not apply to loss through radioactive isotopes used for measuring, examinations or process control or for laboratory use.

DISMANTLING AND REINSTALLATION COST

The Insurer is not liable under Appendix 9:4 for costs and expenses incurred where the product is a component part or accessory of any motor vehicle.

The sum insured USD 25,000,000 per occurrence and in the aggregate only applies for products delivered after 1st July 2016.

For products delivered before 1 st July 2016, the limit of USD 10,000,000 per occurrence and in the aggregate applies.

The sum insured, USD 25,000,000, is included in the total sum insured of Products Liability USD 50,000,000 per occurrence and in the aggregate for the policy period.

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Included in the master insurance policy from January 1, 2012.

PURE FINANCIAL LOSS, APP. 1:6, p. 9.1

Replacing text according to App. 1:6, p.9.1, Pure Financial Loss, the following applies:

The Insurance does not cover financial loss unless:

- it is a consequence of a Personal Injury or property damage claim covered under this Policy, or
- it is claims for damages in respect of Pure Financial Loss for which an Insured, as controller or processor of personal data, may be liable under section 48 of the Swedish Personal Act (1998:204) or it is claims for material and non-material damages for which an Insured, as a controller or processor of personal data, may be held liable under article 82 of the General Data Protection Regulation (EU) 2016/679, or equivalent legislation outside Sweden. Damages covered hereby are not covered by any other paragraph in App. 1:5 or any endorsement. The Sum Insured is limited to the amount shown in the Insurance Policy (Sub Limits, Data Protection Act)

"Pure Financial Loss" refers to financial loss arising without connection with Personal Injury or property damage.

VIRUS EXCLUSION

Virus Exclusion according to VIR 11:1 applies only regarding Employers Liability, Appendix 5:2

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Recall

Period: 1 July 2023 - 30 June 2024

Trigger: Occurrence

Geographical scope: Worldwide excluding Russia and Belarus

Trigger - See wordings

Sum insured	Currency	Per occurrence	Aggregate
Products Recall	USD	50,000,000	50,000,000

Deductible	Currency	Per occurrence
SELF INSURED RETENTIONS		
Products Recall	USD	5,000,000
Products Recall - In case of exhaustion of the Self Insured Retention	USD	1,000,000

Insurance terms and conditions

Appendix 12:8	Products Recall
Appendix 13:1	Terrorism
Appendix 18:1	Additional Insured
IS1:2	International Sanctions
FINC 2:2	Financial Interest Value Cover Liability

SELF INSURED RETENTION

With clarification of Appendix 12 the following applies:

All losses where the costs covered by the insurance wordings exceed USD 1,000,000 shall be reported to and handled by the Insurer and Charles Taylor Adjusting and be considered when calculating the annual aggregate of the Self Insured Retention of USD 5,000,000

A Self Insured Retention of USD 5,000,000 per Occurrence and in any one Policy Period applies. All losses where the costs covered by the insurance wordings exceed USD 1,000,000 will be accumulated and applied against the annual aggregate.

In case of exhaustion of the Self Insured Retention a deductible of USD 1,000,000 per occurrence applies for subsequent recalls.

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SUM INSURED

The sum insured for Recall under this endorsement cannot be combined with the sum insured under Appendix 9 Dismantling and Reinstallation Cost.

The sum insured for Recall USD 50,000,000 per occurrence and in the aggregate only applies for products delivered after 1st July 2016.

For products delivered before 1 st July 2016, the sum insured of USD 20,000,000 per occurrence and in the aggregate applies.

The sum insured for Recall mentioned above is included in the total sum insured of Products Liability USD 50,000,000 per occurrence and in the aggregate for the policy period.

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Professional Indemnity

Period: 1 July 2023 - 30 June 2024

Trigger: Claims Made

Retroactive date: 1 April 1989

Geographical scope: Worldwide excluding Russia and Belarus

Sum insured	Currency	Per occurrence	Aggregate
Professional Indemnity	USD	30,000,000	30,000,000

Deductible	Currency	Per occurrence
Professional Indemnity, World wide excl. North America	USD	50,000
Professional Indemnity, North America	USD	200,000

Insurance terms and conditions

Appendix 7:4	Professional Indemnity
Appendix 13:1	Terrorism
Appendix 18:1	Additional Insured
Appendix 19:1	Extended Reporting Period
IS1:2	International Sanctions
FINC 2:2	Financial Interest Value Cover Liability

PROFESSIONAL INDEMNITY

The sum insured for Professional indemnity of USD 30,000,000 as specified in the master insurance policy comprises the maximum amount of indemnity paid under this insurance and the integrated local insurance for professional indemnity for [REDACTED] Inc.

If the total amount of indemnity paid should exceed the sum insured specified in the master insurance policy, the policyholder shall repay the excess to If P&C.

SUM INSURED

The sum insured mentioned above is included in the total sum insured of General Liability USD 50,000,000 per occurrence.

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[Redacted]

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Local policies included in the master policy	Client
LP0000017510	[Redacted]
LP0000017526	[Redacted]
LP0000017528	[Redacted]
LP0000017531	[Redacted]
LP0000017532	[Redacted]
LP0000017534	[Redacted]
LP0000017535	[Redacted]
LP0000017537	[Redacted]
LP0000017538	[Redacted]
LP0000017547	[Redacted]
LP0000017549	[Redacted]
LP0000017550	[Redacted]
LP0000021897	[Redacted]
LP0000025218	[Redacted]
LP0000025231	[Redacted]
LP0000034046	[Redacted]
LP0000036662	[Redacted]
LP0000036711	[Redacted]
LP0000041832	[Redacted]
LP0000047816	[Redacted]
LP0000057576	[Redacted]

We are processing personal data of our customers in compliance with the applicable insurance and data protection legislation. More information about processing personal data can be found at: <https://www.if-insurance.com/large-enterprises>

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Information about the service provider

The insurer is If P&C Insurance Ltd (publ), unless otherwise specified.

If P&C Insurance Ltd (publ)

Company reg. no.: 516401-8102

Address: Barks väg 15, 106 80 Stockholm,

Phone: 0771-43 00 00

Website: www.if.se

If is supervised by the Swedish Financial Supervisory Authority. (Finansinspektionen, P.O. Box 7821, 103 97 Stockholm, 08-408 980 00, finansinspektionen@fi.se, www.fi.se).

If is furthermore supervised by the Swedish Consumer Agency in matters relating to marketing and advertising. (Konsumentverket, Box 48, 651 02 Karlstad, 0771-42 33 00, konsumentverket@konsumentverket.se, www.konsumentverket.se).

If does not make personal recommendations as specified in Chapter 1, Section 9, paragraph 18 of the Insurance Distribution Act (SFS 2018:1219), on the insurance products offered.

Complaints related to insurance distribution shall be made to the distributor. Please primarily contact the person who handled the matter to which the complaint relates. Complaints can also be made to If's Customer Ombudsman (kundombudsmannen@if.se).

If's employees who distribute insurance are paid a fixed monthly salary, irrespective of the number of policies sold. Should variable remuneration be received, it is to a small extent only and based on quantitative criteria.

Insurance services, including services provided by an insurance intermediary, are exempted from VAT according to Chapter 3 paragraph 10 of the Value Added Tax Act (SFS 1994:200).

Applicable to insurance through an intermediary where If P&C is asked to administrate the insurance intermediary's remuneration:

On behalf of the insurance intermediary, at the client's request, the invoice contains the specification of If P&C's premium and the insurance intermediary's remuneration.

If P&C is responsible neither for ascertaining whether the insurance intermediary's remuneration should include VAT, nor for including VAT on the invoice.

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